Notification Waiver Determination

Vermont Information Processing – Vintrace

Acquisition	Vamos Topco Aggregator L.P. (**Vamos Topco**), as the ultimate owner of Vermont Information Processing Inc (**VIP**), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in EO Bidco Pty Ltd (**EO Bidco**), as the holding company of Vintrace Holdings (**Vintrace**), from Brew Seller LLC, an entity newly formed by Encompass + Orchestra Inc (**Encompass Technologies**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	20 October 2026

Parties to the Acquisition	The acquirer, Vamos Topco, is the ultimate owner of VIP, a wholly owned portfolio company of Warburg Pincus LLC. VIP is a provider of enterprise resource planning (**ERP**) systems and data solutions to customers in the food and beverage industry, being principally suppliers, distributors and retailers of food and beverage products in the United States. VIP does not have any presence in Australia. The target, EO Bidco, as the holding company of Vintrace, is being acquired from Brew Seller LLC, an entity newly formed by Encompass Technologies. Encompass Technologies is a provider of ERP solutions for food and beverage manufacturers and distributors including a small number of customers in Australia. Vintrace is a wine production software platform of Encompass Technologies designed to manage winery production and logistics.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information [provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between Vamos Topco (and its connected entities) and Vintrace in the supply of food and beverage ERP systems and data solutions in Australia b. there are alternative suppliers of food and beverage ERP systems and data solutions to customers in Australia.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act